

24VECV04449 24VECV04449

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-08-28

Motion: MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CNWI%2C08%2F28%2F2026

Source SHA-256: 66844112420ebba95f2c0f8ffb85991cc240a95fb42470a70b5d528a4e41ee31

Case Number: 24VECV04449 Hearing Date: August 28, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

EDUARDO P.

BARRERA, an individual,

Plaintiff,

vs.

NISSAN NORTH AMERICA, INC., a California Corporation,

et al.

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE

NO: 24VECV04449

[TENTATIVE]

ORDER RE: MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

Dept.

I

HEARING

DATE: August 28, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: September 11, 2024

TRIAL

DATE: None set

I.

BACKGROUND

This is a lemon law action arising out of Plaintiff Eduardo P. Barrera's ("Plaintiff") purchase of a 2021 Nissan Rogue, VIN: JN8AT3BA5MW012526 (the "Subject Vehicle") manufactured by Defendant Nissan North America, Inc. On September 11, 2024, Plaintiff filed the operative Complaint against Defendants Nissan North America, Inc.; Achievement Automotive Group, LLC d/b/a Nissan of Thousand Oaks; and DOES 1 through 10 (collectively, "Defendants"), alleging causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of the Song-Beverly Act Section 1793.2; and (4) Negligent Repair.

On December 26, 2024, Defendant Nissan North America, Inc. filed its Answer to the Complaint.

On July 31, 2026, Plaintiff filed the instant Motion for Attorneys' Fees, Costs, and Expenses. On August 17, 2026, Defendant Nissan North America, Inc. (hereinafter, "Nissan") filed an Opposition. On August 21, 2026, Plaintiff filed a Reply.

II.

LEGAL

STANDARDS

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd. (a)(10)(B).) In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794, subd. (d).) Section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794.)

Thus,

the statute includes a “reasonable attorney’s fees” standard. The attorney bears the burden of proof as to “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (Ibid.)

A

plaintiff’s verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass’n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

III.

DISCUSSION

Evidentiary Objections

Nissan’s objections to Paragraphs 6-41, 77-78, 97, and 99-100 of the declaration of

Kevon Jacobson are OVERRULED.

Merits of the Motion

It is

undisputed that Plaintiff is the prevailing party in this action, and therefore entitled to attorney fees, costs, and expenses pursuant to California Civil Code Section 1794, subdivision (d). Plaintiff now moves for an award of attorney fees and costs in the amount of \$27,553.75 consisting of: (1) \$18,843.00 in attorneys' fees; (2) \$4,710.75 (1.25 multiplier enhancement); (3) \$4,000.00 for the present fee motion; and (4) \$3,175.65 in costs.

A.

Reasonableness of Fees

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.) A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections. (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101.)

Here, Plaintiff seeks to recover

attorneys' fees for a total of 49.0 hours spent litigating this case between eight attorneys (Kevin Jacobson ("KJ"), Andrew Jung ("AJ"), Danja Stocca ("DS"), Alexander Brauns ("AB"), Michael Jahangani ("MJ"), Stephanie Hovhannisyan ("SH"), Roy Enav ("RE"), and Derek Chipman ("DC")) and two paralegals (Karina Sanchez Lopez ("KSL") and Salma Martinez ("SM")) at the following rates: (1) KJ at the May 2024 rate of \$525.00/hour and at the 2025 rate of \$550.00 for 0.7 hours; (2) AB at the law clerk rate of \$225.00/hour and at the associate attorney rate of \$350.00 for 18.0 hours; (3) AJ at the 2024 rate of \$400.00/hour

and the 2025 rate of \$495.00 for 12.5 hours; (4) DS at the rate of \$350.00/hour for 0.7 hours; (5) MJ at the rate of \$350.00/hour for 9.2 hours; (6) SH at the rate of \$395.00/hour for 4.1 hours; (7) RE at the rate of \$450.00/hour for 1.0 hour; (8) DC at the rate of \$495.00/hour for 7.9 hours; and (9) KSL at the rate of \$210.00/hour for 2.5 hours. (Jacobson Mot. Decl., ¶¶6, 50-62; Jacobson Reply Decl., ¶7b.) However, KJ did not provide the hourly rate for SM nor attest to her legal experience. (Ibid.) Nevertheless, SM's hourly rate appears in the billing invoice as \$175.00/hour for 0.3 hours. (Jacobson Mot. Decl., ¶99, Ex. 44 at p. 4.)

The Court finds that the bulk of the work was performed at hourly rates of \$350.00 and \$495.00. (Ibid.) As such, the request for hourly rates of \$525.00 and \$550.00 are unreasonable. Finding these amounts to be unreasonable, and considering the minimal time spent on a simplistic case, the Court imputes an hourly rate of \$400.00 to the work of KJ, AJ, RE, and DC; and an hourly rate of \$175.00 to the work of KSL. Therefore, Plaintiff is awarded \$20,652.00 in attorney's fees, representing 56.90 hours of attorney work at the hourly rates of \$225.00, \$350.00, \$395.00, and \$400.00, and \$175.00 for paralegal work. (See Jacobson Mot. Decl., Ex. A [billing records]; Jacobson Reply Decl., ¶7b.) Plaintiff is also awarded \$3,175.65 in costs. (See Memorandum of Costs, 7/31/26.)

B.
Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award" and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other Serrano factors to the extent these are already included with the lodestar. (Ketchum v. Moses (2001) 24 Cal. 4th 1122, 1138-1139.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and

be unreasonable.” (Id. at 1139.)

Here,

considering the simplicity of the instant action and the mandatory fee-shifting statute in a Song-Beverly action which decreases contingency risk, the Court declines to award a lodestar multiplier requested.

IV.

CONCLUSION

Based on the foregoing, Plaintiff Eduardo

P. Barrera's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED in the reduced amount of \$23,827.65.

Plaintiff Eduardo P. Barrera to give notice.

Dated: August
28, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court